

Article Summary and Opinion

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Name of Article	What Drives a Jury's Deliberation? The Influence of Pretrial Publicity and Jury Composition on Deliberation Slant and Content
Name of Journal	Psychology, Public Policy, and Law (American Psychological Association)
Article Authors	Christine L. Ruva, Stephanie E. Diaz Ortega, and Kathleen A. O'Grady
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Summary

Ruva, Diaz Ortega and O'Grady answered a question about pretrial publicity that many other studies have failed to address: How do jurors behave in the jury room when all or some of them have been exposed to biased news prior to trial? Studies have shown that pretrial publicity alters individual juror verdicts.

However, Ruva et al. studied the content, bias and style of the deliberation itself and compared juries composed of jurors who all saw the same type of coverage (pure juries) to juries where half of the jurors saw one type of coverage and half saw another type of coverage or no coverage at all (mixed juries). To conduct their study, Ruva et al. obtained data from 63 videotaped mock jury deliberations. These deliberations involved 333 college students. Prior to the trial, each student participant read one of three types of news articles: an article depicting the defendant as a cold-blooded murderer; an article portraying the victim as a physically abusive and threatening husband; or a non-related article regarding crime. Students then viewed a 21-minute edited version of a real New Mexico murder trial where a female claimed she shot her estranged husband in self-defense, and deliberated for a maximum of 25 minutes. Two trained coders recorded what each jury discussed, whether each piece of evidence was discussed in a manner that supported the prosecution or defense; how often the jury conducted straw polls; and whether anyone referenced or corrected the pretrial media coverage. A number of trends were evident. Purely negative-victim juries were most verdict-oriented. They conducted numerous polls early in the deliberation process and spent more time discussing the verdict and less time discussing the evidence presented than other juries. When they did discuss the evidence, they framed it in a manner that favored the defense, whereas purely negative-defendant juries framed identical evidence in a manner that favored the prosecution.

The addition of exposed jurors to unexposed jurors did not eliminate this trend. Mixed juries containing negative-defendant jurors continued to favor the prosecution, and mixed juries containing negative-victim jurors continued to favor the defense.

Although jurors were specifically instructed not to refer to the pretrial media coverage during deliberation, it appeared in nearly every exposed jury's discussions at least once, and most of this discussion went unchecked. Jurors who had not seen the articles did not typically correct those who had, presumably because they had no knowledge of what was contained within the news coverage. Corrections were predominantly made by exposed jurors correcting themselves. Perhaps the most significant finding was the mediation effect. The bias in the discussion of the evidence accounted for how the composition of the jury affected jurors' post-deliberation guilt ratings. Unexposed jurors deliberating with negative-defendant jurors rated the defendant higher on guilt than unexposed jurors on pure juries, suggesting that bias was transmitted via the manner in which evidence was discussed rather than via direct repetitions of the news stories. Based upon these results, Ruva et al. concluded that courts are incorrect in treating jury instructions and deliberation as cures for pretrial publicity, as bias appears to be inherent in how exposed jurors encode and recall evidence in the first place.

Opinion

I find this article persuasive, largely due to the fact that Ruva et al. studied behavior rather than simply outcomes. Showing that exposed jurors vote differently is one thing; watching them direct a discussion of a detective's testimony in a particular direction without ever referencing the article they read is another. This detail makes the source-confusion explanation seem tangible rather than theoretical and accounts for why admonitions from the bench achieve so little. This study has serious limitations, which Ruva et al. openly acknowledge. The juries were relatively small, the trial was brief, the jurors were students, and a large proportion of juries failed to arrive at a verdict. A twelve-person jury listening to days of testimony may perform differently; a substantial majority of unexposed jurors may be able to correct biases in ways these four- to six-person groups cannot. Still, the general trend of their findings aligns with decades of previous work and I believe that the limitations do not detract from their central argument. What remains with me are the legal implications. If unexposed jurors can assimilate biases from fellow jurors through everyday evidence discussions, then a mixed jury is not a haven and solving the Sixth Amendment problem in high-profile cases is more challenging than courts typically acknowledge. This article provides compelling support for considering remedies such as changing venue – which judges rarely

grant – as alternative measures to instructing jurors again regarding pretrial publicity that they cannot possibly adhere to.